

The Amended Petition alleges that no extension of credit has been granted, that no action to foreclose the Claim of Mechanic's Lien was filed, that the 90-day time period to enforce the Claim of Mechanic's Lien has expired. Amd. Pet., ¶ 4. The Petition also alleges Petitioner has not filed for bankruptcy and that no other restraint exists preventing Respondent from filing an action to enforce the lien. Amd. Pet., ¶ 8. The Petition alleges that on October 30, 2025, which is at least ten days prior to the filing of the Petition, Petitioner sent Respondent, "by registered or certified mail" a written demand to remove the Claim of Mechanic's Lien. Amd. Pet., ¶ 6. Service of the written demand by "registered or certified mail, express mail, or overnight delivery by an express service carrier" is proper. Civ. Code §§ 8100, 8106(b), 8110. (Petitioner has not attached any proof as to the mailing by registered or certified mail.) In sum, Petitioner has met the substantive requirements for relief.

2. CU0001901 Heather Miles v. Michael Smallwood

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

Plaintiff Heather Miles' unopposed motion to deem matters admitted and for imposition of sanctions is granted. Defendant Michael Smallwood is ordered to pay Plaintiff \$2,810.00 in sanctions within 30 days.

Request to Deem Matters Admitted

A party may move for an order deeming her Requests for Admission ("RFAs") admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." Code Civ. Proc. § 2033.280(c). Responses are due within 30 days after service of the discovery. Code Civ. Proc. §2033.250(a). Response time is extended by manner of service. Code Civ. Proc. § 2016.050. Service by mail extends the deadline by 5 calendar days. Code Civ. Proc. § 1013(a).

At bar, Plaintiff served her RFAs on November 17, 2025 by mail, making December 22, 2025 the deadline for Defendant to serve a timely response. Batista Decl., ¶ 2. Plaintiff has not received any response from Defendant, nor has Defendant responded to any meet and confer attempts. Batista Decl., ¶¶ 2-3. Therefore, The matters specified in Plaintiff's RFAs are deemed admitted, unless defendant serves, before the hearing, a proposed response to the requests for admission, that is in substantial compliance with Code of Civil Procedure Section 2033.220.

Request for Sanctions

"It is mandatory that the court impose a monetary sanction ... on a party ... whose failure to serve a timely response to the [RFAs] necessitated this motion." Code Civ. Proc. § 2033.280(c). Unlike the analogous provisions for other discovery motions, this subdivision makes no exception for a responding party who acted with substantial justification. *Compare, e.g.,*

Code Civ. Proc., §§ 2030.290(c), 2031.300(c). Defendant failed to serve timely responses to plaintiff's RFAs. His failure to do so necessitated plaintiff's motion; thus, sanctions are required.

Plaintiff requests \$2,750.00 in attorney's fees and anticipated costs of \$100 and submits a declaration in support thereof. The Court finds the requested fees are reasonable and grants the same as prayed. Costs are also awarded for the \$60 filing fee. Total fees and costs of \$2,810.00 shall be paid within 30 days of service of the final order.

3. CU0001902 Travis Gould vs. PHH Mortgage Corporation, et al.

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.

Plaintiff Travis Gould's January 20, 2026, motion to compel answers to interrogatories and to deem facts as admitted against Defendants is denied.

Plaintiff asserts his "first round of discovery was propounded to all the Defendants on July 1, 2025." Mot., 2:7-8. Defendants contend they responded to the same with objections on August 4, 2025. Palmieri Decl. ¶ 4. Plaintiff, however indicates that the original discovery requests were *withdrawn* on August 20, 2025, and then served again reportedly on September 24, 2025. 2/27/26 Vodonik Decl. ¶¶6-8. No proof of service has been provided as to the same. In any event, the parties agree that an extension to respond to discovery was granted by Plaintiff to Defendants until November 19, 2025 due to ongoing settlement efforts. Vodonik Dec., Ex. B; Palmieri Decl. ¶ 6.

Under Code of Civil Procedure sections 2030.300(c) (interrogatories), and 2033.290(c) (requests for admissions), unless notice of a motion to compel further responses is given within 45 days of the service of the responses, or any specific later date to which the parties have agreed in writing, the propounding/requesting party waives any right to compel a further response to the interrogatories, or requests for admission.

Plaintiff's deadline to compel responses to the discovery requests was Monday, January 5, 2026 (given that the 45th day fell on January 3, 2026). Plaintiff filed its motion on January 20, 2026. Accordingly, the motion is untimely and Plaintiff waived his right to compel further responses.

Plaintiff unsuccessfully made the instant motion. There has been no showing that there was substantial justification for the motion or that imposition of sanctions would be unjust. *See* Code Civ. Proc. §§ 2030.300(c), 2033.290(c). Defendants seek sanctions for 5 hours of attorney time without specification of a reasonable rate. The Court finds that Defendants are entitled to monetary sanctions from Plaintiff in the amount of \$1,200.00 (4 hours at \$300/hour).

4. CU0002271 Christine Jones vs. Nationstar Mortgage LLC, et al.

On the Court's motion, this hearing is continued to March 9, 2026, at 10:00 a.m.